
Costs Decision

Site visit made on 12 August 2026

by **Ann Veevers BA(Hons) PGDip(BCon) MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 7 September 2026

Costs application in relation to Appeal Ref: 6009068

Rose Cottage, 38 Higher Lane, Kerridge SK10 5AR

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Wayne and Debbie Maxwell for a full award of costs against Cheshire East Council.
 - The appeal was against the failure of the Council to issue a notice of their decision within the prescribed period on an application for planning permission for 'demolition of part of the existing single storey flat roof garage, and the erection of a single storey rear first floor extension to create living accommodation on top of the existing flat roof of the garage'.
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Decision

1. The application for an award of costs is refused.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
3. The applicant's claim for an award of costs is both procedural and substantive. It is based on the premise that the local planning authority (LPA) behaved unreasonably by failing to grant planning permission and to do so within the statutory timeframes; failing to engage in a constructive and timely manner which could have avoided the need to appeal altogether; and failing to provide clear or substantiated reasons for a decision. This is alleged to have led to the applicant incurring unnecessary and wasted expense in engaging with the appeal process.
4. The LPA have responded to the claim acknowledging that due to unforeseen staff illness and the appointment of a new Conservation Officer, a decision on the application was unable to be made within the statutory time period. However, it is argued that the applicant was aware of the issues that needed to be addressed in relation to the proposal through the comments of the previous Conservation Officer and the case officer.
5. Evidence indicates the statutory target date for determination of the planning application submitted to the LPA was 6 March 2026. The case officer advised the applicant on 28 January 2026 that she had not yet carried out a site visit but would update the applicant once this had been completed and once comments had been received about the proposal from the Conservation Officer. Those comments were subsequently made publicly available on the LPA website on 5 February 2026. In seeking to address concerns in relation to heritage matters, the applicant

- proactively contacted the case officer and submitted revised plans by email dated 2 March 2026, four days before the end of the statutory time period.
6. The applicant continued to request updates on the application submission with no response from the LPA until a formal complaint was made on 24 March 2026. A holding reply was then sent to the applicant, followed by a detailed response from the case officer on 1 April 2026. This response provided clear advice that, even if heritage matters could be resolved, the proposal was unacceptable for reasons relating to the Green Belt, which, in the opinion of the case officer, could not be resolved. Options were offered to the applicant on the next steps available to them. However, the applicant's information shows that further attempts to contact the LPA were met with 'out of office' email replies.
 7. The PPG advises that costs can only be awarded in relation to unnecessary or wasted expense at the appeal stage, but behaviour and actions at the time of the planning application can be taken into account. It is further set out that if it is clear that the LPA will fail to determine an application within the time limits, it should give the applicant a proper explanation. It goes on to state that if an appeal in such cases is allowed, the LPA may be at risk of an award of costs if the Inspector concludes that there were no substantive reasons to justify delaying the determination and better communication with the applicant would have enabled the appeal to be avoided altogether.
 8. The lack of a decision within the prescribed time period is not unusual and staff illness is unfortunate. However, the applicant should not have had to chase the Council for a decision or wait for an explanation for the delay after the statutory timescale had expired. In this regard, I find that the LPA did not act in a particularly communicative, timely or pro-active manner, instead reacting to, rather than pre-empting the applicant's prompts to provide updates. This amounts to unreasonable behaviour.
 9. Nevertheless, the LPA did eventually provide an explanation for the delay, albeit only once a complaint had been submitted and almost one month after the statutory time for determination. Even though reasons why the proposal was considered to be unacceptable were provided at this time, no extension of time was sought from the applicant whilst awaiting their feedback in relation to the case officer's email of 1 April 2026, which was remiss.
 10. The LPA has, however, provided a statement in response to the appeal which clearly substantiates its reasoning behind the putative reasons for refusal, in response to which the appellant has had the opportunity to respond through final comments. I note too that the comments provided by the Conservation Officer along with the case officer's email of 1 April 2026 set out why, albeit briefly, the proposal would not comply with relevant development plan policy. It is clear from this information, had the Council made a decision on the application, it would have refused to grant planning permission for the reasons set out in its statement. Accordingly, it is evident that the appeal could not have been avoided.
 11. Therefore, unreasonable behaviour resulting in unnecessary or wasted expense has not occurred and an award of costs is not warranted.

Ann Veevers INSPECTOR